

EthicHawks Forensic Governance & Compliance Consultancy

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TO: The Honourable Judge President, Labour Court of South Africa (Cape Town)

TO: The Honourable Judge President, High Court of South Africa (Western Cape Division)

CC: The Parliamentary Portfolio Committee on Justice and Correctional Services

(Attn: Adv. Vamaano / Mr. Mthonjeni)

DATE: 09 June 2026

REF: EH/JO/2026/003 – FORMAL ESCALATION: SYSTEMIC ADMINISTRATIVE OBSTRUCTION, REGISTRY MALFEASANCE, AND JUDICIAL CONDUCT

1. PURPOSE

This memorandum serves as a formal escalation to the Judge Presidents regarding a systemic breakdown of administrative compliance and judicial conduct within your respective divisions. Because the offices of the Registrars have completely and utterly failed to execute their statutory duties, administrative accountability now vests directly with the heads of these jurisdictions. As a self-represented whistleblower in a state of documented financial destitution, I am holding this office accountable for a coordinated "litigation by attrition" strategy that has brought my well-being to a state of near-total collapse.

2. THE CAUSAL NEXUS OF INSTITUTIONAL FAILURE

It is imperative to review this matter not as isolated grievances, but as a linear progression of institutional harm where the failures of one court directly forced the crisis in the next. There is a direct causal nexus between the Labour Court's initial obstruction and my subsequent appearance before Judge Anderson in the High Court. Because the Labour Court registry remained institutionally silent and failed to allocate a case number for 28 days during a documented destitution emergency, I was left stripped of the urgent protection the law provides. This administrative refusal to perform a statutory duty was the proximate cause that forced me, under conditions of extreme psychological duress and medical vulnerability, to seek emergency relief before the High Court (Case No: 2026-066952).

3. JUDICIAL CONDUCT AND THE "AMBULANCE AT THE COURTHOUSE" PRINCIPLE

My forced appearance before the High Court resulted in a profound experience of institutional betrayal, characterized by an adversarial temperament and a failure to protect a vulnerable litigant:

The "Ambulance at the Courthouse" (25 March 2026):

During the hearing before Judge Anderson, the presiding Judge expressed an on-record frustration with my Practice Note, stating her patience had "deteriorated." Concurrently, the Court allowed an advocate to intrude upon my representation without a mandate, despite my disclosed PTSD. This individual's conduct was visibly consistent with an acute mental health crisis, and she was admitted for 72-hour involuntary psychiatric observation at Somerset Hospital immediately following the hearing — an outcome the Court witnessed in real-time directly from chambers. Despite the evident invalidity of this representative's conduct, the Court issued a Scale C punitive costs order against

me. This outcome — derived from an institutional failure to recognize a medical emergency — functioned as a weaponized financial barrier exceeding 100% assurance of destitution: a tax bill of above R100 000,00 to an already destitute litigant.

Performative Benevolence (April 2026 Anticipation Hearing):

Following the 25 March proceedings, I appeared for a 24-hour notice of anticipation in April 2026. During this hearing, the presiding Judge adopted a tone of performative benevolence, publicly remarking that the Court should be "lenient" and "provide a helping hand" to me as a destitute litigant. This statement — which functioned as a mockery of the Court's duty to assist — was immediately followed by a judicial outcome based on a document already before the court but not in my file, that resulted in the summary dismissal of my matter.

4. ADMINISTRATIVE OBSTRUCTION AND SYSTEMIC GOVERNANCE BREACHES

The administrative failures within both registries have escalated from structural incompetence into a deliberate compromise of institutional governance and data integrity:

Labour Court Obstruction:

My matter (Case No: 2026-077546) has been ripe for adjudication since 29 April 2026, yet Registrar Farzaana Ismail maintains a policy of absolute administrative silence. Electronic read receipts confirm that my "URGENT SECOND FOLLOW-UP" was read by Registrar Ismail on 09 June 2026 at 14:36, yet she continues to withhold necessary administrative action.

High Court Record Suppression:

Acting Chief Registrar Nicola Hanekom has failed to provide essential audio evidence for Case No: 2026-066952 and Case No: 2026-086906, effectively suppressing the primary record required to move forward with my Rule 42 Rescission application and for the evidence record.

Misrepresentation of Official Records:

Crucially, these failures are compounded by a severe governance breach: the deliberate misrepresentation of my official filing records to the Director of Court Operations, Mrs. Ruanne David. By misreporting the timeline and status of my filing to executive leadership, the administrative staff have actively manipulated the court's official indices to shield the registry from accountability, creating a false impression of non-compliance on my part.

Statutory Data Breach (POPIA):

This administrative lawlessness is further evidenced by a severe privacy violation, wherein the registry committed a documented POPIA breach by transmitting unauthorized, third-party Armstrong v City of Cape Town documentation to me.

5. NOTICE OF OVERSIGHT

This escalation is simultaneously transmitted to the Parliamentary Portfolio Committee on Justice and Correctional Services (Attn: Adv. Vamaano / Mr. Mthonjeni). This oversight body is already in possession of the extensive chain of correspondence detailing these administrative mutations, the failures of the court's service provider (Inlexso), and the ongoing erosion of statutory compliance within these jurisdictions.

6. FORMAL REMEDY AND REGULATORY NOTICE

Because the Registrars have completely defaulted on their responsibilities, I respectfully demand the immediate intervention of the Judge Presidents to ensure:

Administrative Compliance:

An immediate directive to the Registrars to accurately update the court indices and provide the long-overdue administrative outcomes.

Forensic Investigation:

An independent forensic review into the misrepresentation of records to the Director of Court Operations, Mrs. Ruanne David, and the tracking failures of the registry.

Procedural Rectification:

That I be afforded the full procedural latitude mandated by the Biowatch framework for self-represented, vulnerable litigants, ensuring I am no longer penalized for administrative failures entirely attributable to the state.

7. POPIA REMEDIATION AND REGULATORY ESCALATION

Given the documented POPIA breach involving the Court's unauthorized transmission of third-party *Armstrong v City of Cape Town* documentation to me, I formally request a written explanation regarding this data compromise. Please be advised that unless this administrative breach is rectified and a formal remediation plan is provided, I will escalate this matter directly to the Information Regulator for a full statutory investigation into the Court's information security and privacy compliance.

Yours Faithfully,

Sr. Wilbur William Matthee

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Ethical Pledge Statement: *While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this escalation, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.*